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System of Government

The State refers to a political institution that represents a sovereign people organised under one independent government within a definite territory and subject to no outside control. Thus, a community of persons permanently occupying a definite territory independent of external control and possessing an organised government. [UPSC 2021]

A government is a group exercising authority over a territory and its people, responsible for creating and enforcing laws, managing public affairs, and providing essential services.

The **system of government** defines the division of authority between the legislature and executive, determining a country's governance structure.

TYPES OF GOVERNMENT

- **Unitary System:** In a **Unitary System**, a central government holds all power, with regional authorities deriving their authority from it. Unitary systems always have a Single strong Government and may have a written (France) or unwritten (Britain) constitution, supreme (Japan) or non-supreme (Britain) constitution, rigid (France) or flexible (Britain) constitution, bicameral (Britain) or unicameral (China) legislature.
- **Federal System:** A **Federal System** divides powers between a central government and regional governments, each with constitutionally defined autonomy. Example: US, Switzerland, Australia, Canada, Russia, Brazil, Argentina and Germany
- **Confederate System:** In a **Confederate System**, regional governments maintain most power, with a weak central authority that relies on voluntary compliance. It features a **flexible constitution**. Examples include the **former Soviet Union** and **Switzerland's canton system**.
- **Constitutional government** is one that operates within the limitations set by a country's constitution, serving as the supreme law of the land. [UPSC 2020, 2021]
The **Constitutional Government** places effective restrictions on the Authority of the State in the interest of individual liberty. [UPSC 2014]
- **Source of Power:** It is the ultimate source of all governmental powers and delineates critical limitations that protect the **fundamental rights** of citizens. [UPSC 2023, 2014]
- **Limitation on Government:** A key aspect is its role in constraining sovereign governments in their ruling capacity, establishing a **limited government** structure. [UPSC 2020]

FORMS OF GOVERNMENT

Feature	Parliamentary System	Presidential System	Semi-Presidential System
Executive Authority	Prime Minister leads; derives authority from Parliament.	President is both head of state and government; elected independently.	Dual executive: President and Prime Minister share authority.
Relationship with Legislature	The Prime Minister can be removed by a vote of no confidence.	President cannot be easily removed; serves fixed terms.	The President is elected; the Prime Minister is accountable to the legislature.
Cabinet Composition	Cabinet members are typically from the legislature.	Cabinet members are appointed by the President; may not be part of the legislature.	The Cabinet includes members from both the President and the legislature.
Legislative Role	Legislature plays a crucial role in governance and policy making.	Legislature has limited influence over the President's decisions.	The Legislature has significant power but also shares it with the President.
Stability	Can be unstable; the government can change frequently.	More stable; fixed terms provide consistency.	Stability can vary; dependent on the balance of power.

Decision-Making	Quick decision-making due to close ties between executive and legislature.	Slower decision-making; President may face opposition from Congress.	Decision-making can be efficient but may face conflicts.
Constitutional Flexibility	Often more flexible due to the evolving nature of Parliamentary practices.	Generally rigid; fixed terms are defined in the constitution.	Can be both flexible and rigid, depending on the balance of power.
Example Countries	United Kingdom, India, Canada	United States, Brazil, Mexico	France, Russia, Ukraine
Merits	• Harmony between Legislature & Executive. • Responsible Government answerable to Parliament; [UPSC 2020] • Power isn't centralised; Cabinet (CoM) ensures collective authority. • Opposition can serve as an alternative if the ruling party loses majority. • CoM reflects with wide Representation to diverse sections in governance.	• Stable government. • Definiteness in policies. • Based on separation of powers. • Government by experts. • Direct mandate from the electorate enhances legitimacy.	• Combines strengths of both systems • Flexible power distribution. • Encourages cooperation • Stable Leadership: Parliament can remove an unpopular PM, ensuring stability. • Checks and Balances • Alignment with Development: An independent PM fosters political and economic growth.
Demerits	• Loss of majority can lead to frequent government changes. • New governments often alter existing policies. • A strong Cabinet can centralise power. • Blurred Separation of Powers. • Ministers may not be specialists, limiting effective governance.	• Conflict between legislature and executive. • Non-responsible government. • May lead to autocracy. • Narrow representation. • Difficulties in achieving consensus.	• Potential for conflict between President and PM; leading to inefficiencies. • Unclear responsibility for policy outcomes. • Votes of confidence may disrupt the legislative process. • Unpopular policies can be deflected to the PM, obscuring true accountability.

SYSTEM OF GOVERNMENT IN INDIA

- The Constitution of India provides for a parliamentary form of government (**the executive is responsible to the legislature for its policies and acts**), both at the Centre and in the states. [UPSC 2017]
- **Parliamentary Government:** It is also known as the Cabinet government/ Responsible government/ Westminster model of government and is prevalent in Britain, Japan, Canada, and India, among others. Defined by **Articles 74, 75** (Centre) and **Articles 163, 164** (States).
- **Reasons for Adopting the Parliamentary System in India**
 - **Familiarity:** The framers were acquainted with the parliamentary system from British rule, making it a natural choice.
 - **Responsibility:** Dr. B.R. Ambedkar emphasised the need for a democratic executive to ensure **stability** and **responsibility**.
 - **Avoiding Conflicts:** The parliamentary system helps prevent conflicts between the **legislature** and **executive**, crucial for a young democracy like India.
 - **Representation:** Given India's diverse society, the parliamentary system ensures **representation** of various sections and interests through small constituencies.

FEATURES OF PARLIAMENTARY SYSTEM IN INDIA

- **Nominal and Real Executives:** The **President** is the nominal head (**de jure**, **Article 74**), while the **Prime Minister** is the real head (**de facto**, **Article 75**).
- **Majority Party Rule:** The party with the majority in the **Lok Sabha** forms the government. The **President appoints the PM (Article 75)** and ministers on the PM's advice.
- **Collective Responsibility:** Ministers are collectively responsible to the **Lok Sabha (Article 75)**, which can remove them through a **no-confidence motion**. [UPSC 2015]
- **Double Membership:** Ministers belong to both **executive and legislature (Article 75)**.
- **Dissolution of Lok Sabha:** The **President**, on the PM's advice, can dissolve the Lok Sabha before its term (**Article 85**).
- **Secrecy:** Ministers maintain confidentiality in their decisions and proceedings (**Article 75**).

DISTINCTION BETWEEN INDIAN AND BRITISH MODELS

Indian	British
• Republican system with an indirectly elected President as head of State. • Based on Constitutional Supremacy. • The PM may be a member of any House (Lok Sabha or Rajya Sabha). • Non-Parliament members can be appointed as ministers for six months • No system of legal responsibility; ministers do not countersign official acts • No institution of Shadow Cabinet.	• Monarchical system with a hereditary King/Queen as Head of State. • Based on Parliamentary Sovereignty. [UPSC 2021] • The PM must be a member of the Lower House (House of Commons). • Ministers are usually members of Parliament only. • Ministers have a system of legal responsibility; they must countersign acts. • Shadow Cabinet formed by the opposition to balance the ruling cabinet and prepare future ministers.

INDIAN CONSTITUTION AND FEDERAL SYSTEM

- The USA, the **first and oldest federation** in the world, was formed in **1787** following the **American Revolution (1775–83)**. The **Constitution of India** establishes a **federal system** of government, although the term **federation** is not explicitly mentioned. Unlike the USA, Indian federalism did not arise from agreements among states; it is modelled after the **Canadian system**.
- Indian federalism is not the result of an agreement among the federating units. [UPSC 2017]
- **Federal Structure:** India is described as a **'Union of States' (Article 1)**, reflecting its **sociocultural diversity** and large size. This structure allows for a **quasi-federal system** that accommodates regional autonomy while maintaining a strong central authority.
- **Quasi-Federal:** The federalism in India represents a compromise between the following two conflicting considerations: normal division of powers under which states enjoy autonomy within their own spheres; and need for national integrity and a strong Union government under exceptional circumstances.
- **Supreme Court Ruling:** The **S.R. Bommai case (1994)** affirmed federalism as a **basic structure**; states possess **supreme authority** within their sphere, recognizing **practical realities**.

POLITICAL SCIENTISTS AND THEIR DESCRIPTIONS OF INDIAN FEDERATION

- **Paul Appleby:** Describes the Indian system as **extremely federal**.
- **Morris Jones:** Refers to it as **"bargaining federalism,"** indicating negotiations among different levels of government.
- **Ivor Jennings:** Characterises it as a federation with a **strong centralising tendency**, noting that the Indian Constitution has unique safeguards to enforce **national unity and growth**.
- **Alexandrowicz:** States that India is a **case sui generis**, emphasising its **unique character**.
- **Granville Austin:** Calls Indian federalism **"cooperative federalism,"** describing it as a **new kind of federation** tailored to meet India's specific needs.
- **K.C. Wheare:** Considers India a **semi-federal** or **quasi-federal** state, highlighting its mixed characteristics.
- **K. Santhanam:** Points out the **unitary bias** of the system due to central financial dominance.
- **Dr. B.R. Ambedkar:** Emphasises that India's federation is **indestructible** and not formed by agreements among states, stating, "The Indian Constitution is a Federal Constitution with a dual polity - both the Union and the states derive their authority from the Constitution."

FEDERAL AND UNITARY FEATURES OF THE INDIAN CONSTITUTION

Federal Features	Unitary Features
• Dual Polity: Union handles national matters, States handle local issues (Article 246). • Written Constitution: World's longest constitution with clear Centre-State jurisdictions. • Division of Powers: Centre and States legislate on concurrent subjects, but Centre prevails in conflicts [UPSC 2017] • Supremacy of Constitution: It's the Supreme law, enforced by Judicial review (Article 13). • Rigid Constitution: Federal structure amendments need special procedures (Article 368). • Bicameralism: Rajya Sabha represents States; Lok Sabha represents people (Article 79). • Independent Judiciary: Supreme Court settles Centre-State disputes and guards constitutional supremacy (Article 131, 32, 136). [UPSC 2017/ 2021]	• Strong Centre: Union has more important subjects (Article 248, 249) and overriding power on the Concurrent List. • Single Constitution: Same constitution for Centre and States. • No Equal State Representation: Rajya Sabha representation is population-based. [UPSC 2017] • States Not Indestructible: Parliament can change state boundaries (Article 3). • Flexible Constitution: Most provisions amended by Parliament alone (Article 368). • Emergency Provisions: Centre gained complete control during emergencies (Articles 352, 356, 360). • Single Citizenship: Equal rights nationwide (Article 5-11). • Integrated Judiciary: Supreme Court oversees both Central and State laws (Article 141). • All-India Services: Centrally controlled services (IAS, IPS, IFS) (Article 312). • Integrated Audit: CAG audits both Centre and States (Article 148). • Governor's Appointment: By the President, acts as Centre's representative (Article 155-156). • Parliament's Authority: Can legislate on State List if necessary (Article 249). • Veto Over State Bills: Governor can refer bills to the President (Article 200).

COMPARISON OF INDIAN CONSTITUTION WITH THE WORLD

Feature	India	United Kingdom	United States	Canada	France	Japan	South Africa
Type of Constitution	Written and lengthy	Unwritten, based on statutes, conventions, and treaties	Written and codified	Written and codified	Written and codified	Written and codified	Written and codified
Fundamental Rights	Yes, detailed in Part III	Not explicitly stated; rights derived from common law and statutes	Yes, Bill of Rights (first ten amendments)	Yes, in the Canadian Charter of Rights and Freedoms	Yes, in the Declaration of the Rights of Man and Citizen	Yes, guaranteed under Article 11 of the Constitution	Yes, in the Bill of Rights (Chapter 2 of the Constitution)
Amendment Process	Rigid and flexible (different procedures)	Not formalised; based on parliamentary sovereignty	Rigid; requires supermajority in Congress and state ratification	Flexible; requires a majority in Parliament	Rigid; requires a majority in both houses and approval by referendum	Rigid; requires a majority in both houses and a majority vote	Rigid; requires a two-thirds majority in Parliament

Separation of Powers	Yes, clear separation among Executive, Legislature, and Judiciary	No strict separation; Parliament holds supreme authority	Yes, clear separation among Executive, Legislature, and Judiciary	Yes, clear separation, with parliamentary system	Yes, clear separation among Executive, Legislature, and Judiciary	Yes, clear separation among Executive, Legislature, and Judiciary	Yes, clear separation among Executive, Legislature, and Judiciary
Judicial Review	Yes, the Supreme Court has the power of judicial review	No formal judicial review; Parliament is sovereign	Yes, power of judicial review established in Marbury v. Madison	Yes, the Supreme Court has judicial review authority	Yes, Constitutional Council ensures compliance with the Constitution	Yes, the Supreme Court can review laws for constitutionality	Yes, the Constitutional Court has the power of judicial review
System of Government	Parliamentary system (Quasi-federal)	Parliamentary system (Unitary with devolved powers)	Federal system	Federal system	Semi-presidential system (Unitary, but regions have some autonomy)	Parliamentary system (Unitary system but recognizes local autonomy)	Parliamentary republic (Unitary system)
Head of State	President (Ceremonial role)	Monarch (Ceremonial role)	President (Executive role)	Monarch (Ceremonial role)	President (Executive role)	Emperor (Ceremonial role)	President (Executive role)
Party System	Multi-party system	Two-party system	Two-party system	Multi-party system	Multi-party system	Multi-party system	Multi-party system
Emergency Powers	President can declare national emergency	Government can declare state of emergency	President can declare national emergency	Prime Minister can declare national emergency	President can declare state of emergency	Prime Minister can declare state of emergency	President can declare state of emergency
Official Language	Hindi and English	English	No official language at the federal level	English and French	French	Japanese	English and Afrikaans

